

Notice of the National Commission for Data Protection regarding
Bill No. 7991 introducing a criminal procedure for minors and amending: 1° the amended law of March 7, 1980 on judicial organization; 2° the amended law of March 17, 2004 on the European arrest warrant and the procedures for surrender between Member States of the European Union; 3° the law of July 20, 2018 reforming the prison administration
Deliberation No. 67/AV36/2023 of July 21, 2023

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures related to the protection of the rights and freedoms of natural persons with regard to processing."

2. Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such legislative measure, which relates to processing."

3. Furthermore, in accordance with Article 8.3° of the aforementioned law of August 1, 2018, transposing into national law Article 46.1.e) of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of prevention, detection of criminal offenses, investigations, and prosecutions in this regard or enforcement of criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council, the CNPD "advises the Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and administrative measures related to the protection of the rights and freedoms of natural persons with regard to the processing of personal data."

4. By letter dated April 1, 2022, the Minister of Justice invited the National Commission to express its opinion on Bill No. 7991 introducing a criminal procedure for minors and amending: 1° the amended law of March 7, 1980 on judicial organization; 2° the amended law of March 17, 2004 on the European arrest warrant and the procedures for surrender between Member States of the European Union; 3° the law of July 20, 2018.

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Important Reform of the Prison Administration (hereinafter referred to as the "Bill"). By letter dated February 10, 2023, Mr. Minister for Relations with Parliament, at the request of Ms. Minister of Justice, invited the National Commission to express its opinion on the government amendments related to the Bill referenced above, submitted on the same date. This opinion informs the Bill taking into account the modifications introduced by the government amendments, including the modification of the title of the Bill.

5. The Bill is part of a broader reform of youth law, consisting of three bills¹ and a draft Grand-Ducal regulation². The Bill under review aims, in particular, to establish a criminal law for minors and seeks, according to the explanatory memorandum, to enshrine, "while drawing its sources from Luxembourg's criminal procedure, [...] at the legislative level the major principles regarding specific procedural guarantees for minors as provided by the Convention on the Rights of the Child adopted by the United Nations General Assembly on November 20, 1989" (hereinafter the "Convention"), ratified in Luxembourg by a law of December 20, 1993. Incidentally, the Bill intends to transpose the aspects related to the new criminal regime for minors provided by EU Directive 2016/800 of the European Parliament and Council of May 11, 2016, concerning the establishment of procedural guarantees for children who are suspects or accused persons in criminal proceedings (hereinafter the "EU Directive

2016/800") and Directive 2013/48/EU of the European Parliament and Council of October 22, 2013, on the right of access to a lawyer in criminal proceedings and in proceedings concerning the European arrest warrant (hereinafter the "Directive 2013/48/EU").

6. This opinion will limit its observations to issues related to respect for privacy and the protection of personal data raised by the Bill.

7. It should be noted that the judicial control authority, established by Article 40 of the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security, is the competent authority to oversee the processing operations of personal data carried out by the judicial courts, including the public prosecutor's office, and by the administrative order in the exercise of their judicial functions. These data processing operations therefore do not fall under the jurisdiction of the CNPD, pursuant to Article 5 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection and Article 39 of the law of August 1, 2018.

¹ In addition to the Bill under review, this includes Bill No. 7994 on assistance, support, and protection for minors, young people, and families, and amending: 1° the Labor Code; 2° the amended law of March 7, 1980, on judicial organization; 3° the amended law of June 16, 2004, reorganizing the State socio-educational center; 4° the amended law of July 4, 2008, on youth; 5° the amended law of December 10, 2009, regarding the involuntary hospitalization of persons with mental disorders; 6° the law of August 1, 2019, concerning the state institute for child and youth assistance; and repealing 1° the amended law of August 10, 1992, on the protection of youth; 2° the amended law of December 16, 2008, on child and family assistance, as well as Bill No. 7992 concerning the rights of minor victims and witnesses in criminal proceedings and amending: 1° the Penal Code; 2° the Code of Criminal Procedure; 3° the amended law of August 10, 1991, on the legal profession.

² Draft Grand-Ducal regulation on the organization of detention regimes for minors.

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****Criminal Matters.**** Outside of this exception, the National Commission remains the competent authority to control and verify compliance with the provisions of the aforementioned law as well as the GDPR. While it understands that certain provisions of the bill in question relate to processes under the jurisdiction of the judicial control authority, the CNPD does not intend to make an arbitrary distinction in this opinion based on the data controller processing the data in question and intends to express its views on all provisions related to the respect for privacy and the protection of personal data raised by the bill. For the remarks applicable to the courts in the exercise of their judicial functions, it is therefore necessary to also take into account the opinion of the ACJ adopted on May 24, 2023.

8. The CNPD notes that, according to the explanatory memorandum, the structure of the bill under review "is directly modeled on that of the Code of Criminal Procedure" and that the "procedural pathway from the moment of the commission of the acts constituting the offense to the execution of penalties follows that of the Code of Criminal Procedure, the provisions of which apply to minors unless this bill provides otherwise." At the same time, the authors argue that the bill contains an "important preliminary chapter that incorporates the main principles and procedural guarantees of the Convention" and that the provisions of the bill insert "whenever necessary additional guarantees for the minor and thus ensure at all stages of the criminal procedure that the rights of the child are respected."

9. As a preliminary matter, the National Commission notes that several competent authorities within the meaning of the law of August 1, 2018, in criminal matters participate, at different stages, in the criminal procedure and that it is not always clear which competent authority should be considered responsible for data processing. Therefore, the CNPD invites the legislator to clarify, as much as possible, the different data controllers in the bill.

****I. The Scope *ratione personae*****

1. ****Determination of the age of the minor aged between thirteen and eighteen years****

10. Article 2, paragraph 1 of the bill provides that it applies "to minors aged between thirteen and eighteen years suspected or prosecuted in the context of a criminal procedure" at the time of the commission of the acts. The CNPD notes that the age of criminal responsibility has been lowered from fourteen to thirteen years according to the authors "in accordance with the suggestion of the judicial authorities who believe that this is a 'critical' age since it is the age at which the minor begins secondary education."

11. Article 2, paragraph 4, second sentence, of the bill specifies that "[w]hen it cannot be established that the minor is over thirteen years old or if it can be established that the minor has not reached the age of thirteen, this law does not apply." The authors explain that this paragraph "finds its origins in Article 11 - Assessment of the age of the UN Model Law [which] states that 'when there is uncertainty about the age of the child, the juvenile court orders a...'"

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****Evaluation of Age as Soon as Possible****. Article 10, paragraph one, of the draft law provides that "in case of uncertainty regarding the age of the minor, the public prosecutor orders an age evaluation in the form of an expert assessment based on all available information and documents." The CNPD congratulates the authors for introducing a presumption of minority by stipulating in Article 10, paragraph one, of the draft law that "during the duration of the expertise, the minor is subject to the provisions of this law." The CNPD notes with interest that the commentary on the articles specifies that "the regime of co-expert assessments and counter-expert assessments as provided in the Code of Criminal Procedure is applicable in this instance." However, it questions whether it would be appropriate to include this clarification in the provision itself and to also insert additional procedural guarantees aimed at preserving the best interests of the child, particularly the right of the minor to be heard during the course of this expertise. The National Commission further wonders whether the provision in question should specify how the various parties can raise the "uncertainty regarding the age of the minor" with the public prosecutor and what means of appeal they have if the public prosecutor does not order an evaluation on the grounds that the public prosecutor believes the minor falls within the age range covered by this draft law.

12. The CNPD regrets that the explanatory memorandum and the commentary on the articles remain silent on the data collected and the non-medical or medical methods to be used to support this expertise. In particular, it raises that, in terms of evaluating the age of a person, the provision should specify in which scenarios medical procedures may be carried out and consequently what health data may be processed. The National Commission recalls in this regard that Article 9 of the Law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security (hereinafter the "Law of August 1, 2018, in criminal matters") provides that:

"[...] the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, health data, or data concerning the sexual life or sexual orientation of a natural person is only permitted in cases of absolute necessity, subject to appropriate safeguards for the rights and freedoms of the data subject, and only:

- a) [...] when they are authorized [...] under [...] another provision of Luxembourg law
- b) to protect the vital interests of the data subject or another natural person [...]"

13. Thus, the CNPD recommends that it be stipulated that, for the determination of the age of the minor, the collection of health data should only be possible as a last resort. Therefore, it believes that a medical expertise should only be required when other less intrusive means have not yielded conclusive results. Taking into account the principle of data accuracy and the margin of error inherent in the various medical methods of age assessment, the National Commission wonders whether it would not be wise to specify that the expertise concerning

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****On the determination of the age of the minor cannot rely exclusively on the results of a medical examination. It believes that the expertise should in all cases take into account non-medical elements. It also recommends that the law include a prohibition on sexual maturity examinations to determine age. In this regard, it notes that the Federation of Social Sector Actors in Luxembourg (hereinafter "FEDAS") advocates in its opinion to prohibit "certain invasive medical acts [...] to guarantee the integrity and the best interests of the minor" and calls on the authors of the bill to specify the evaluation methods.****

****2. The determination of the intellectual maturity of adults aged between eighteen and twenty-one****

14. ****Article 2, paragraph 5, of the draft law provides that the "provisions of this law may also apply to adults aged between eighteen and twenty-one, when they do not have the intellectual maturity to understand the implications of their actions at the time of the facts." The second paragraph of said paragraph provides that "[i]f it has doubts regarding the intellectual maturity of the young adult [...] the competent judicial authority may order an expertise." Furthermore, Article 29, paragraph 3, of the draft law also provides that the investigating judge may order an expertise.****

15. ****The CNPD understands that the collection of health data, primarily regarding the psychological state of young adults, seems inherent to the restoration of said expertise and refers to the previous developments on the application of Article 9 of the law of August 1, 2018, in criminal matters.****

16. ****The National Commission wonders whether the young adult can plead a lack of "intellectual maturity" or whether the doubt can only be raised by the competent judicial authority or the investigating judge.****

****3. The transmission of the investigation file to the victim concerning facts attributed to a minor under 13 years of age****

17. ****The CNPD notes that, under Article 2, paragraph 4, of the draft law, the competent judicial authorities and judicial police officers may conduct an investigation and send, in the case of an investigation, "a copy of the file [...], upon request, to the victim and the civil party" even if "the minor has not reached the age of thirteen." Indeed, the authors of the draft law explain that "This provision aims to safeguard the rights of the victim, notably their right to seek compensation for their harm. Indeed, if no investigation is conducted against a minor under 14 years of age, it will be difficult for the victim to report the... ****

3 See notably Council of Europe, Directorate General of Democracy, The assessment of the age of migrant children, a rights-based approach - The assessment of the age of migrant children - A rights-based approach Guide for responsible persons, December 2019. See also European Asylum Support Office. Practical Guide of EASO on age assessment, 2019 2nd ed.

4 Opinion of the Federation of Social Sector Actors in Luxembourg (FEDAS Luxembourg a.s.b.l.), Doc. pari. 7991/05, p. 4.

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proof of his damage. It is recalled that the civil liability of the parents of the minor may always be sought, regardless of the minor's age. The CNPD understands the interest of this transmission to the victim and to the civil party. It notes that, by providing for the delivery of the file "upon request," the authors of the amendments have taken into account the first joint opinion of the Court of Appeal, the Public Prosecutor's Office, the Public Prosecutors of Diekirch and Luxembourg, and the District Courts of Diekirch and Luxembourg dated September 19, 2022 (hereinafter referred to as the "judicial authorities' opinion"), which raises the point that "it would be preferable to specify that the copy of the file is delivered at the request of the victim (or civil party). Indeed, the text, as it is written, could be

interpreted as a systematic obligation to send a copy of the file to the injured party, which does not necessarily correspond to the wishes of every concerned victim."

18. The National Commission recalls that, despite the harm caused for which civil liability may legitimately be sought, the victim's use of said copy must respect the dignity of the minor and his right to privacy. Thus, the recipients of said copy should in particular avoid communicating elements of the file to the public that would allow the identification of the minor or reveal the personality of the minor, in application, among others, of Article 49 of the draft law.

4. The lack of intellectual maturity to understand the scope of his actions at the time of the facts of the young adult between eighteen and twenty-one years old

19. Article 2, paragraph 5, first subparagraph, of the draft law further states that "if there are doubts regarding the intellectual maturity of the young adult to understand the scope of his actions at the time of the facts, the juvenile criminal court may order an expert evaluation by a certified expert." The CNPD wonders how the juvenile criminal court can be seized. It refers in this regard to the opinion of the judicial authorities who believe that "[t]his subparagraph makes no sense, as the juvenile criminal court is in principle incompetent for young adults aged eighteen to twenty-one for whom an evaluation proving this lack of maturity has not yet been conducted beforehand during the investigation phase." The National Commission notes that in accordance with Article 31, paragraph 3, of the draft law, the investigating judge may "order an evaluation by a certified expert" in the case of preventive detention if he "has doubts regarding the intellectual maturity of the young adult between eighteen and twenty-one years old to understand the scope of his actions at the time of the facts." Just as the judicial authorities raise in their opinion, the CNPD questions the definition of "lack of intellectual maturity of the young adult to understand the scope of his actions at the time of the facts."

II.

The right to information

1. The information of the minor

5 Doc. pari. 7991/01, p. 26.

6 Doc. pari. 7991/02, p. 27.

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20. Articles 4 and 5 of the draft law enshrine the right to information for the minor and, where applicable, for the legal representatives, the accompanying person, and the ad hoc administrator. The two articles notably transpose Articles 4 and 5 of the aforementioned EU Directive 2016/800. The CNPD welcomes that, according to Article 4, paragraph 4, of the draft law, the information referred to in that article is provided in writing and orally, "in a language that the minor understands and in simple and accessible language." It recalls that communications with the persons concerned pursuant to Article 11, paragraph 1, of the law of August 1, 2018, in criminal matters, are provided "to the person concerned in a concise, comprehensible, and easily accessible manner, in clear and simple terms."

21. The CNPD notes that Article 4 of EU Directive 2016/800 provides that the minor is to be informed of their "right to a personalized assessment, as provided for in Article 7" of said directive. However, it questions the absence of reference to this right in the two aforementioned articles of the draft law. The general right to information that the minor benefits from under Article 11 of the law of August 1, 2018, in criminal matters, should be supplemented by the transposition of this specific provision regarding the criminal procedure for minors.

22. Article 4, paragraph 3, of the draft law states that "[u]pon deprivation of liberty, the minor is informed of the right to limit the deprivation of liberty in accordance with the provisions of Article 31, paragraph 4, and to resort to diversion measures." The CNPD suggests explicitly mentioning "the right to periodic review of detention" in accordance with the requirements of Article 4, paragraph 1, letter b), iii), of EU Directive 2016/800.

2. Information for Legal Representatives

23. Article 5, paragraph 1, of the draft law indicates that "legal representatives are informed, within a reasonable time [...]." As raised by the Ombudsman in their external oversight functions of places of deprivation of liberty (hereinafter "CEPL"), it will be necessary to clarify the "reasonable time" and to establish a maximum time limit for attempting to contact the legal representatives.

24. The public prosecutor may prevent the "communication of said information to the legal representatives" according to Article 5, paragraph 2, of the draft law, when they believe that such communication "1° is contrary to the best interests of the minor; 2° is not possible, because, after reasonable efforts have been made, no legal representative can be reached or their identity is unknown; 3° could, based on objective and factual elements, significantly compromise the criminal procedure." According to Article 3, 4°, of the draft law: "agent of the Central Social Assistance Service, serving criminal law for minors, accompaniment section, who accompanies the minor in the criminal procedure."

8 Doc. pari. 7991/04, p. 2.

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25. The National Commission asks whether the minor can contest the "assessment of the public prosecutor." If so, it suggests specifying in this provision the appropriate means of appeal for better legal certainty.

26. Article 5, paragraph 4, of the draft law further provides that "legal representatives are informed, without undue delay, each time the minor is deprived of liberty as well as the reasons for the deprivation of liberty." The authors of the draft law indicate that this paragraph allows for compliance with Article 5, paragraph 2, of Directive 2013/48 regarding the right to access a lawyer in criminal proceedings. The directive provides for the automatic information of legal representatives "as soon as possible," whereas the draft law provides for information "without undue delay." Article 19, paragraph 3, of the draft law also provides that, in the case of deprivation of liberty related to flagrant crimes and offenses, legal representatives are informed "without undue delay." Article 7-1, paragraph 1, final part, of the amended law of March 17, 2004, regarding the European Arrest Warrant and procedures for surrender between Member States of the European Union, as it appears from the amendment proposed by Article 72 of the draft law, provides that "[t]he police officer informs, without undue delay, the legal representatives of the minor of the deprivation of liberty as well as the reasons for it." The CNPD suggests defining the notion of "without undue delay" in the two aforementioned provisions. Like the judicial authorities in their opinion, the National Commission wonders whether it should not complete the three provisions to clarify the consequences of the impossibility of contacting the legal representatives.

27. Article 29, paragraph 4, of the amended law of July 20, 2018, on the reform of the prison administration, as amended by Article 73, point 6°, of the draft law, also provides that when a "decision to place in cellular regime [...] is made by the director of the prison administration" concerning a minor, "a copy of the decision is sent to their legal representatives." The CNPD wonders whether, and in what manner, this provision applies to "adults aged between eighteen and twenty-one" falling within the scope of this draft law and suggests clarifying this point, for example, by defining the term "minor" as it is to be understood in the context of the aforementioned law of July 20, 2018. Indeed, Article 2, paragraph 5, third subparagraph, of the draft law provides that "[e]xcept as otherwise provided, any reference to the minor is understood to include any adult between eighteen and twenty-one years old who does not have the intellectual maturity to understand the implications of their actions at the time of the facts," without it being clear whether this provision also applies in the context of the aforementioned law of July 20, 2018.

3. Information of the ad hoc administrator and the accompanying person

28. Following the amendments, Article 7, paragraph 2, of the draft law provides that the "minor is

accompanied by an ad hoc administrator when the presence of the legal representative:

1° is contrary to the best interests of the minor;

2° is not possible because, after reasonable efforts have been made, no legal representative can be contacted; or

3° would significantly compromise the criminal proceedings, based on objective and factual elements.

29. The CNPD suggests that when an ad hoc administrator is appointed, they should receive the information initially intended for the legal representatives. It questions whether the ad hoc administrator has the "right to access the minor's file." Finally, the National Commission wonders why Article 5, paragraph 4, and Article 26 of the draft law do not provide for the information, if applicable, of the ad hoc administrator in the event of the minor's deprivation of liberty.

30. The National Commission notes that otherwise, the ad hoc administrator may not have all the elements at their disposal to defend the best interests of the minor. However, there is a question regarding the role assigned to this ad hoc administrator, particularly whether this person can, on behalf of and for the benefit of the minor, take steps to safeguard their interests.

31. The National Commission, like the judicial authorities, questions the role that the ad hoc administrator will have in the criminal proceedings. Thus, the draft law does not clarify when and how an ad hoc administrator is appointed and what qualifications this ad hoc administrator should possess. It wonders whether it should be understood that this refers to the ad hoc administrator mentioned in Article 89 concerning the "appointment of an ad hoc administrator" of draft law No. 7994, which provides that "[w]hen the interests of the person or persons holding parental authority are in opposition to those of the minor, the youth court may, at the request of the State, the minor, or ex officio, appoint a legal administrator." Furthermore, the CNPD questions whether the ad hoc administrator is to be considered a professional who concludes "on the application of this law" within the meaning of Article 15 of the draft law and is therefore subject to the professional secrecy referred to in that article. In any case, it recalls that the ad hoc administrator is subject to the provisions of the GDPR and must ensure, in particular, the confidentiality of the data received in the exercise of their functions, taking into particular account the vulnerability of the person concerned.

32. Article 5, paragraph 3, of the draft law provides that

"All procedural acts notified to the minor are also notified to their legal representatives, except in the cases referred to in paragraph 2. If a support person has been designated, a copy is sent to them."

33. The CNPD understands that the transmission is made to an agent of the SCAS and that the SCAS is therefore responsible for implementing a processing of personal data of this information, structured according to the missions of the "support person." It questions how the constitution of this file relates to the file that the SCAS establishes regarding the same minor in the application of its other missions. Furthermore, considering that the "support person" is supposed to safeguard the best interests of the accused minor, the CNPD

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CNPD questions the respect for professional secrecy between the accompanying person and other agents of the SCAS who may be in contact with the minor. It also wonders what retention periods apply to the data collected by the SCAS, particularly when the public prosecutor revisits their initial assessment requiring the presence of an accompanying person.

34. Article 20, paragraph 2, of the draft law provides that "[t]he legal representatives of minors or the accompanying person are present during the collection." Thus, the CNPD understands that the provision stipulates that, alternatively, the legal representatives or the accompanying person are present during the collection of human cells. It can therefore be assumed, despite the silence of the commentary on the articles regarding this matter, that this is partly a procedural guarantee for the minor to ensure the presence of an adult looking after their interests and, on the other hand, a limitation on the number of people present for reasons related to the respect for the minor's privacy. The CNPD questions why this provision does not allow for the presence of the ad hoc administrator,

when such an administrator has been designated, as an alternative to the presence of the legal representatives or the accompanying person. It also wonders whether the minor can oppose the presence of these individuals during the collection.

III.

Information Exchange

1. Shared Professional Secrecy

35. In its opinion regarding draft law no. 7994, the National Commission “recognizes that an exchange of information among professionals can facilitate a comprehensive and continuous care for beneficiaries. Nevertheless, the provisions allowing for such an exchange must be, on the one hand, predictable regarding their repercussions for the individuals concerned and, on the other hand, proportional to the objective pursued.”

36. Article 15 of the draft law concerning “professional secrecy and communication of information” states that “[...] all professionals involved in the application of this law are bound by professional secrecy under the conditions provided for in Article 458 of the Penal Code.” The communication of information is limited to “information strictly necessary for the care of the minor.” Subject to procedural guarantees, the article under review also allows for the transmission of information “to any person with whom the minor is placed” and to “services intervening on behalf of the minor under youth protection.”

37. It notes that the FEDAS indicates, regarding the “introduction of shared professional secrecy and the possibility of communication of information,” that “[t]hese provisions are essential for the continuity of necessary information for establishing appropriate care in the judicial context [and that they lift the obstacles that have long been posed by Article 38 of the law of August 10, 1992 [...] which prevented any form of communication of information under penalty of legal action].”

38. In its opinion, the CEPL believes that “[i]f the information is essential to ensure the safety of the minor or the individuals with whom they are in contact, the transmission of this information...”

****Information must not constitute a mere option, but must be a legal obligation. On the other hand, the exchange must be limited to strictly necessary information.****

39. In their joint opinion, the judicial authorities raise that “paragraph (3) [of Article 15] should refine the issue of information exchange by specifying that entire or partial files containing police reports or judicial documents, covered, where applicable, by the secrecy of the investigation, are not transmitted to an administration, but only useful and necessary information for the fulfillment of their mission drawn from these documents.” Similarly, the judicial authorities note that “the commentary on the article also refers to the educational reintegration of the minor, whereas the text does not mention it. A reformulation therefore seems necessary to clarify which professionals can exchange information, in what form, regarding a minor suspected or prosecuted for a criminal offense.”

****2. The transmission of data to the commission for the collection of concerning information****

40. The CNPD can follow the authors of the amendments that added, to Article 2, paragraph 4, subparagraph 3, of the draft law, the obligation to refer to the “commission for the collection of concerning information,” established under draft law No. 7994, “if the facts likely to have been committed by the minor under the age of thirteen carry a penalty [...] whose maximum is equal to or greater than two years of imprisonment.”

41. Article 10, paragraph 2, of the draft law provides that “If the examination concludes that the minor is under thirteen years old or if it cannot be determined whether the minor has reached the age of thirteen, he cannot be subjected to the provisions of this law. The Public Prosecutor refers the case to the commission for the collection of concerning information, which may access, upon a summarily justified request, the information and documents from the investigation or instruction files essential for the exercise of its mission. The Public Prosecutor transmits, if it deems communication necessary, within a period not exceeding two weeks, a brief situation report to the commission for the collection of concerning information. This report contains no third-party data and is transmitted only if the investigation allows it and if child assistance measures prove necessary.”

42. The CNPD welcomes that the communication of data is limited to "information and documents [...] essential for the exercise of [its] mission" of the CRIP. The National Commission understands that the referral to the CRIP is limited to the cases referred to in the aforementioned Article 2.

****3. The transmission of data to the National Office for Children****

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43. Article 39 of the draft law on the exchange of information provides that "your information and documents from investigation or instruction files essential for the exercise of its mission may be communicated to the National Office for Children upon a summary motivated request."

44. Furthermore, Article 48, paragraph 3, of the draft law states that "After a non-custodial sentence has been pronounced, the judicial authorities shall transmit, if there is a need for protection, a copy of the judgment concerning the minor or the information related to youth protection to the National Office for Children."

45. In addition, Article 21, paragraph 4, second subparagraph, of the draft law provides that "The public prosecutor, after having taken a diversion measure, shall send the useful and necessary information relating to the minor to the National Office for Children."

46. It is important to take into account the opinion of the Council of State dated July 22, 2022, regarding draft law No. 7882 concerning 1° the introduction of specific provisions for the processing of personal data in the application "JU-CHA"; and 2° the amendment of the Code of Criminal Procedure, particularly concerning the transmission of "certain criminal information by the Public Prosecutor's Office and the public prosecutors to administrations as well as to other public and private entities [...] notably in relation to the use that the recipient of the information may make of it." In this opinion, the Council of State notes that the legal provisions providing for such transmission should contain more details on the data to be communicated, considering the purposes pursued by the processing of said data implemented by the recipient, the guarantees regarding the deletion of information, and the guarantees concerning transparency. The Council of State states in this opinion that the law of August 1, 2018, in criminal matters "provides, in its Article 3, paragraph 2, which constitutes the transcription of Article 9, paragraph 1, of Directive (EU) 2016/680, that processing carried out for one of the purposes stated in Article 1 of this law other than those for which the data were collected is only permitted if it is necessary and proportionate to that purpose. It follows that for an infringement of protected rights to be accepted and not considered excessive, it must be strictly framed by various guarantees."

47. The National Commission understands the approach chosen by the authors of the amendments to provide, on the one hand, the possibility for the competent judicial authorities to transmit data to the National Office for Children, while limiting the transmission of information to what is necessary for the ONE to carry out its missions. Thus, the provisions relating to the transmission of information to the ONE seem, following the amendments, to take into account the principle of minimization arising from both Article 5, paragraph 1, letter e), of the GDPR and Article 3, paragraph 1, letter e), of the law of August 1, 2018, in criminal matters.

Doc. pari. 7882/03, p. 8.

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****Limitation of Purposes.**** However, it would be appropriate to specify the retention periods to be observed by the ONE regarding the information transmitted by the criminal authorities.

****IV. Special Register****

48. Article 57 of the draft law replaces Article 15 of the amended law of August 10, 1992, concerning

the protection of youth regarding the special register for minors. Article 57 of the draft law designates the Attorney General as the person responsible for processing and defines the purposes for which the authorities "authorized to be informed" may gain access to the entries in the special register, namely the judgments, rulings, and decisions regarding minors made under this draft law, with the exception of diversion measures decided by the public prosecutor. The CNPD commends the authors for providing these clarifications, thus allowing for better compliance with legislation on the protection of personal data.

49. The CNPD notes that, under Article 57, paragraph 3, of the draft law, "access to information [...] may only be carried out for the following purposes:

- 1° In the context of an investigation, ongoing instruction, or substantive procedure related to a crime or offense committed by the minor;
- 2° In the context of a diversion measure, a custodial sentence, or a non-custodial sentence;
- 3° In the context of a reintegration measure."

50. Furthermore, Article 57, paragraph 4, point 5, of the draft law includes, among the authorities that may gain access, "the Minister of Justice in the case provided for in Article 24, paragraph 2, second sentence, of the law of February 2, 2022, on weapons and ammunition" and "the prison administration in the context of Article 17 of the law on the prison administration." Thus, in the context of granting authorizations for weapons and ammunition, the provision of the aforementioned law of February 2, 2022, states that, "[W]hen the applicant is under the age of twenty-one at the time of the application, the Minister is also authorized to consult the special register provided for in Article 15 of the amended law of August 10, 1992, concerning the protection of youth." Article 17, as amended by this draft law, provides that "the prison administration may, upon a justified request, seek from the Attorney General an extract from the special register for minors." The CNPD wonders whether, for better predictability of the law, these two purposes should not be included in Article 57, paragraph 3, of the draft law under consideration.

51. As raised by the judicial authorities in their joint opinion, it is important to ensure consistency between draft law No. 7882 introducing specific provisions for the processing of personal data in the "JUCHA" application and amending the Code of Criminal Procedure and this draft law.

****CNPD****

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52. Article 6 of Bill No. 7882A, in its current version following the governmental amendments of January 16, 2023, provides that the application "JUCHA" includes a module "youth files" which "(1) [...] may contain information, documents, and data related to files opened for acts that may be classified as criminal offenses committed by minors or for facts concerning minors in danger. (2) Access to this module may only be granted to competent youth magistrates and to members of the judicial administration staff assigned to the relevant services. (3) Access to the information, documents, and data referred to in paragraph 1 is no longer possible, except with the authorization of the Attorney General, the State Prosecutor, or the youth judge director, no later than three years from the day the minor concerned reaches the age of majority, except for data related to measures or convictions enforceable beyond the age of majority. Access is no longer possible, except with the authorization of the Attorney General, the State Prosecutor, or the youth judge director, no later than six months after the end of execution of the measure or conviction. These access requests must be specifically justified. (4) The "youth files" module also contains the information, documents, and data necessary for the implementation of the special register created by Article 15 of the amended law of August 10, 1992, concerning the protection of youth. (5) By way of derogation from paragraphs 1 to 4, access to and the retention of the information, documents, and data recorded in the special register shall be carried out in accordance with Article 15 of the amended law of August 10, 1992, concerning the protection of youth."

53. The authors of the amendments appear to have taken the aforementioned opinion into account.

The initial bill provided that “judgments, rulings, and decisions [...] are deleted [...]”, while the provision as amended now states that “judgments, rulings, and decisions [...] are archived [...]”. However, there is a fundamental difference between deletion and archiving, in that the personal data contained in the entries related to these judgments, rulings, and decisions remain subject to the provisions of the law of August 1, 2018, and the GDPR, even once archived. According to the commentary on amendment No. 62, “the references are adjusted to synchronize them” with Bill No. 7882. Nevertheless, the National Commission regrets that the authors do not explain why these entries in the special register should be archived instead of deleted. Furthermore, the authors of the amendments do not explain the fate of these “archives.” The National Commission reminds that, in accordance with the principle of purpose limitation, the data in the register that are “collected for determined, explicit, and legitimate purposes” must not be “processed in a manner incompatible with those purposes.” Thus, it is necessary to clarify for what purposes the archived entries may be used when the person concerned has reached adulthood, taking into account that these entries only concern the judicial history of the person when they were still a minor. In this regard, it is important to differentiate this access from the use of the criminal records or entries in the other modules of the "JUCHA" application, which concern events that occurred in the adulthood of the individuals concerned. For the archived entries, it will be necessary to specify which authorities can submit “requests [...] specifically justified” for the archived entries and to clarify on what grounds this access may be granted.

V. Delegation of Services of the SCAS

54. Article 58, paragraph 3, second subparagraph, of the bill provides that the juvenile criminal law service of the Central Social Assistance Service may decide to establish a delegation for the implementation of non-custodial sentences and diversion measures in favor of an organization. The commentary on the articles specifies that this delegation “concerns in particular the competent services in the fight against drug addiction (for example, IMPULS) or in the area of violence (for example, the 'Riicht eraus' service).” It seems that this delegation does not generally create a subcontracting relationship in the sense of Article 21 of the law of August 1, 2018, in criminal matters between the SCAS and the delegating organization, since the competent services mentioned define the means of processing personal data, while the purposes are defined in Article 58 of the bill, aiming at the implementation of non-custodial sentences and diversion measures. The National Commission reminds that these organizations must therefore define the appropriate technical and organizational measures to ensure a level of security appropriate to the risk in the sense of Article 28 of the law of August 1, 2018, in criminal matters.

Thus decided in Belvaux on July 21, 2023.

The National Commission for Data Protection

Tine A. Larsen

President

Thierry Lallemand

Commissioner

Alain Herrmann

Commissioner